

From policies to practice: Pathways to end gender-based violence in academia and research

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Session 7: Pathways for change: steps ahead



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Making care matter in EU policy making on gender-based violence in R&I

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European Research and Innovation policy

- ❑ Until 2000, long legacy of gender blindness
- ❑ Uneven development since 2000
- ❑ Momentum growing since 2019

Gender-based violence including sexual harassment in HE and R&I

- ❑ Since the 1970s from unnamed to named and framed
- ❑ Growing research insight
- ❑ 2020: first EU level policy report and recommendations

References: Bondestam & Lundqvist, 2020, Linkova & Mergaert 2021, MacKinnon & Brownmiller 1975, MacKinnon, 1979

Gender-based violence in the European Research Area

- ❑ 2020 report and recommendations from the Standing Working Group on Gender in Research and Innovation
- ❑ 2021 Horizon Europe with Gender Equality Plans as an eligibility criterion
 - ❑ Gender-based violence including sexual harassment is one of the five recommended thematic areas
- ❑ 2021 The Ljubljana Declaration
- ❑ 2022 ERA Policy Action 5
- ❑ Outcome deliverable EU baseline Code of Conduct
- ❑ March 2023 Subgroup on Inclusive Gender Equality
 - ❑ October 2023 Task force on gender-based violence to deliver on Action 5

Ambition

- ☐ Harness the entire spectrum of tools and insights available
 - ☐ H2020 UniSAFE and beyond
- ☐ To develop a policy framework for all actors in the European Research Area
 - ☐ Unequal power relations in higher education and research
 - ☐ Continuum of violence
 - ☐ Victim-centred, trauma-informed
 - ☐ Comprehensive

Signals an agreement on minimum yet ambitious standards to start building together safe academic environments where violence is not only not condoned but is proactively monitored, assessed and addressed

Unfinished business if it ever will

- ☐ In research and higher education, people are networked and on the move
 - ☐ Early-career highly precarious and at-risk stages
- ☐ Non-repetition, accountability and second chances
- ☐ Agency, empowerment, courage

Technical, individualised solutions are not enough: from brains to mind-body connections

Making care matter

- ❑ From the logic of choice to the logic of care (Mol 2008)
 - ❑ Practical, messy entanglements
 - ❑ Choice is sometimes not an option
 - ❑ Responsibility for our participation in the collectives we inhabit
- ❑ From careless academia to making care matter in institutions (Lynch 2010, 2022; Lynch et al. 2012; Lynch et al 2022)
- ❑ From narrowly defined criteria of research excellence to ethical, transparent conduct and accountability

Translations across ERA Actions, mobilization to make the issue stick

PATHWAYS FOR CHANGE: STEPS AHEAD

Silvia Rueda Pascual
Director of the Women and Science Unit



European Context



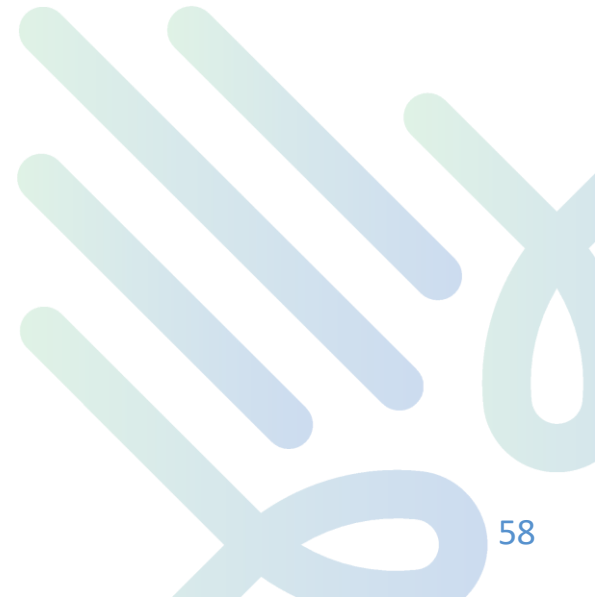
EU's Gender Equality Strategy 2020-2025

Sets out as an objective the urgent need to end gender-based violence, by clearly defining preventive measures to combat gender-based violence in higher education and research institutions.



ERA Policy Agenda 2022-2024

Recognises the need to further promote gender equality and to foster inclusiveness through the development of inclusive gender equality plans and policies, and by tackling a core and under-estimated issue that affects women researchers, and particularly young women researchers: **Gender-based violence, including sexual harassment.**



Spanish approach to support gender equality in R&D



Effective equality

For the Spanish Government and the Ministry of Science, Innovation and Universities the well-being of half of the population that women constitute is a priority. This means actively promoting and encouraging the participation of women – in all their diversity - in research at all levels. Tackling the causes of the current inequalities always considering their intersectionality.



Spanish Presidency of the EU Council actively contribute to the ERA Policy Agenda

It is crucial to ensure that women develop their careers in conditions of equality, safety and inclusiveness and thus that they are free from all kind of Gender-Based Violence, including sexual harassment. For this to happen, gender-sensitive environments need to be created in R&D institutions.

01

Organic Law 1/2004

Comprehensive Protection
Measures against Gender-based
Violence

02

Organic Law 3/2007

For the effective equality of
men and women

03

Royal Decree-Law 6/2019

Urgent measures to guarantee
equal treatment and
opportunities between women
and men in employment and
occupation.

04

Royal Decree-Law 901/2020

By which gender equality plans
and their registration are
regulated

05

Royal Decree-Law 902/2020

Equality pay between women
and men

06

Organic Law 10/2022

Comprehensive guarantee
of sexual freedom

Law 17/2022

New Science Law

Modifies Law 14/2011 on Science, Technology and Innovation.

Apply the current European context to the Spanish STI sector.

- ❑ Integrates Gender Perspective transversally into STI policies and with specific measures to move towards actual and effective Gender Equality in R&D.
- ❑ Same opportunities will be guaranteed by law and that the merits of women will NOT be penalized by care leave, conciliation or gender violence.
- ❑ Requires public STI agents to:
 - **Have GEPs and Protocols against SH with annual monitoring.**
 - **Promote and guarantee diverse, inclusive, safe and egalitarian working environments.**
 - Promote the implementation of measures to achieve the integration of the gender dimension in the content of R&I.
- ❑ Offers legal security to develop positive actions to achieve effective equality.

Royal Decree-Law 669/2023

Regulates the gender equality certification in R&D.

Recognizes entities excellence in the development of GE policies, including the implementation of GEPs and integration of the gender dimension in their programs and projects.

- ☐ Recognizes the role STI entities have been developing for some time.
- ☐ Makes visible gender equality successful actions in STI sector, promotes the exchange of good practices and encourage other R&D centers to pursue the certification.
- ☐ Recognize entities that promote the inclusion of gender perspective in R&D as a path to achieve excellence and to guarantee the advancement of the entire society.



Unequal power relations in higher education and research



Experiences of gender-based violence along a continuum of violence and abuse



Adopt a victim- and survivor-centered, trauma-informed approach to address all forms of gender-based violence



Guarantee of non-repetition



Ensure appropriate institutional mechanisms to handle cases and implement restorative measures for victims



WHY IS THIS RECOGNITION NECESSARY?





GEPs and protocols against GBV are different not only in each country, but in each institution



Existence of measures to compensate GBV victims in all EU states



Many cases of violence do not end in complaints



Survivors must prove their condition as GBV victim to get access to benefits



Complexity increase at the beginning of the career and during mobility stays in other institutions or countries





OBJECTIVE

Allow victims to exercise their rights in every Member State, associated country and institution

HOW?

RPOs that activate their harassment protocol will automatically provide this certificate to the victims without them having to make any additional requests.

Victims of GBV would be able to access to all the compensatory measures defined at European level, without any other additional requirement to prove their condition as GBV victims.



STEPS

1

2

3

4

November 14th 2023

Presentation to ERA Forum
Action 5 Task Force on GBV

November 22nd 2023

Dissemination of the initiative
among UniSAFE

1st term 2024

Co-design inside the ERA Forum
Task Force on GBV

Madrid, Juny 2024

Presentation of recognition and
attached entities during
GENDERACTIONplus
consortium meeting

DESIGN PROCEDURE:

How the certification will be designed, how will be developed, who will discuss it, in what forums and who will promote it

APPROVAL PROCEDURE:

How Member State/Associated countries will be adopting the certification

**Co-design
Process**

PRIORITIES TO SUCCEED

ERA Forum collaborative work.

European Commission commitment to define clear, effective and guaranteeing protocols.

RPOs guarantee the actual and effective implementation of those protocols.





UniSAFE
ENDING GENDER-BASED VIOLENCE



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THANK YOU!

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UniSAFE: looking back, ... and forward

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UniSAFE: important findings

Gender-based violence is a widespread systemic problem in higher education and research, with severe negative consequences for

- individuals (health, well-being and related study/career outcomes)
- institutions (economic, reputational)
- Societies

Gender-based violence does **not** affect people in academia equally: some groups suffer disproportionately

- women, non-binary people, LGBTQ+, people with a disability or chronic illness, ethnic minorities
- groups with a more vulnerable structural position in the system: doctoral candidates, early-career researchers, researchers on temporary contracts and in precarious positions, mobile researchers

([Humbert et al. 2022](#); [Lipinsky et al. 2022](#), [Blazyte and Pilinkaite Sotirovic 2023](#), [Anitha and Lewis 2018](#); [Bondestam and Lundqvist 2020](#))

UniSAFE: underexplored issues (continued)

- Monitoring and evaluating the effectiveness of policies and measures
- Formal and informal reporting mechanisms (including confidential and anonymous reporting)
- Active monitoring
- How to proceed and communicate in 'crisis' situations
- How to engage leadership
- Repair and healing
- Ethical considerations and issues
- (Perceived) legal obstacles
- Restorative justice practices
- How to avoid retaliation
- Delineating professional boundaries
- ...

UniSAFE: underexplored issues

Status:

- Wealth of data and insights into the types of action needed → [UniSAFE toolkit](#) and factsheets with recommendations
- But: **underexplored issues and multiple implementation challenges**

Examples:

- Underreporting by victims (and bystanders)
- Applying the principle of victim/survivor-centredness
- Risk assessments
- Precautionary measures
- Holding perpetrators accountable and setting up fair and proportionate systems of discipline

UniSAFE: mutual learning workshops

Mutual learning workshops:

- Prague: 16 October 2023 ('crises', leadership engagement, repair and healing)
- Krakow: 15 November 2023 (formal & informal reporting, risk assessment)
- Limassol: January 2024

GenderSAFE: work to be continued (36 months)

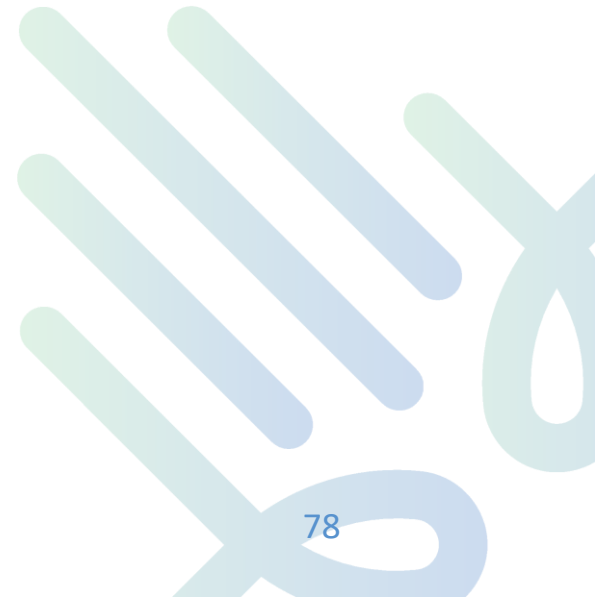
Main building blocks:

- Community of Practice with 5-6 'circles': mutual learning workshops and exchange of experiences
- Training and Training-of-trainers
- Development and implementation of mechanisms for monitoring and evaluation at institutional and EU/MS level

→ Responsibility of the entire research and innovation community, at all levels.

Much more work to do still, let's do it together!

Thank you!



Thank you!

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